

25STCV22798 25STCV22798

County: los-angeles

Division: Civil Law and Motion

Department: 734

Hearing date: 2026-07-16

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=LAM%2C734%2C07%2F16%2F2026

Source SHA-256: 6f0d5cf6342f4c2426911b4f5467efdd8c68ae96b4fee8e24ff1f970a5affc5f

Case Number: 25STCV22798 Hearing Date: July 16, 2026 Dept: 734

The

following tentative ruling is issued pursuant to Rule of Court 3.1308 at 2:38 PM on July 15, 2026.

Rule

of Court 3.1308(a)(1) provides that a “tentative ruling will become the ruling of the court if the court has not directed oral argument by its tentative ruling and notice of intent to appear has not been given.”

The

Court does not desire oral argument on the motion addressed herein. Notice of intent to appear is REQUIRED pursuant to California Rule of Court 3.1308(a)(1).

No

later than 4:00 p.m. on July 15, 2026, the moving and opposing parties must provide notice to ALL OTHER PARTIES and the staff of Department 734 whether the party intends to (1) appear and argue the motion, or (2) submit to the tentative ruling.

Notice to Department 734 should be sent by

email to , with opposing parties copied on the email. The high volume of telephone calls to Department 734 may delay the Court's receipt of notice, so telephonic notice to 213-830-0776 should be reserved for situations where parties are unable to give notice by email.

Plaintiff alleges that

Defendants failed to properly remediate a water intrusion incident that resulted in mold contamination in Plaintiff's apartment unit. Defendants also deactivated the fire sprinkler system without notice. Defendants further gave Plaintiff insufficient notice to vacate the apartment for repairs. Defendants

failed to file a Tenant Habitability Plan for primary renovation work, and threatened to force an entry without legal authorization.

Plaintiff Kamran Rahimov moves for an order compelling Defendant LA Park La Brea B, LLC produce its designated Broker of Record and managing agent, James Merriman, for an oral deposition, and for monetary sanctions.

TENTATIVE RULING

Plaintiff Kamran Rahimov's motion for an order compelling Defendant LA Park La Brea B, LLC produce its designated Broker of Record and managing agent, James Merriman, for an oral deposition, and for monetary sanctions is DENIED.

Plaintiff indicates that Merriman is a resident of North Carolina. (Motion, Page 5:2 – 6.) This Court does not have the power to compel an out of-state resident to attend a deposition, even if the witness is a party/party-affiliated. The Court will not issue a motion to compel because "[t]he law neither does nor requires idle acts." (Civ. Code, § 3532.) "A court will not exercise a power for no material or useful purpose (Citation omitted.)" (Reagan v. Bahrs (1909) 11 Cal. App. 234, 237.)

Code of Civil Procedure section 1989[1] provides that a nonresident of California is not obliged to attend as a witness in this state. After a careful review of the relevant statutes and related legislative history, we conclude that this residency limitation applies not only to trials, but also to discovery. As a result, the trial court has no authority to compel Japanese residents to come to Los Angeles to attend depositions. Neither the legislative history nor the meager case authority on this issue persuasively provide otherwise. We will therefore grant Toyota's petition for a writ of mandate and remand with directions.

(Toyota Motor Corp. v. Superior Court (2011) 197 Cal.App.4th 1107, 1110.)

This applies even if the witness to be deposed is a party or party-affiliated

witness:

We note that the Toyota court also made reference to *Twin Lock, Inc. v. Superior Court* (1959) 52 Cal.2d 754 [344 P.2d 788] (Twin Lock). In *Twin Lock*, the

plaintiff, *Twin Lock, Inc.*, was a resident of New York suing California defendants in a lawsuit filed in Los Angeles. The defendants gave notice that they would depose certain officers of *Twin Lock* in Los Angeles.

Twin Lock moved to vacate the deposition notice, and the trial court denied the motion. The defendants sought imposition of sanctions based on the officers' willful failure to appear. (Citation omitted.) On appeal, *Twin Lock* sought a writ of prohibition to prevent the imposition of sanctions for its officers' failure to appear for the depositions.

The Supreme Court stated: "The disposition of this proceeding depends upon the applicability of section 1989 of the Code of Civil Procedure" (Citation omitted.) *Twin Lock* asserted that under Code of Civil Procedure section 1989, "no form of compulsion, including the use of sanctions against a party, may be used by the court to compel the New [*282] York residents to come to California" (Citation omitted.) The high court evaluated Code of Civil Procedure section 1989, noting that "[t]he word 'witness' in section 1989 includes a prospective witness who is a party or who is a director, officer, or managing agent of a party." (Citation omitted.) The court concluded that Code of Civil Procedure section 1989 was "by its terms applicable to the New York residents involved here." (Citation omitted.) The court held that the trial court was "without power to impose sanctions upon *Twin Lock* based upon the notice which defendants gave for the taking of the depositions in Los Angeles of the New York residents." (Citation omitted.)

I-CA has declined to cite or discuss *Twin Lock*. The case supports the trial court's determination that it had no power to compel production of *Plasgad's* financial records or to compel a deposition of *Plasgad's* nonresident PMK. Under the circumstances, I-CA has provided no grounds for reversal of the trial court's order.

(*I-CA Enterprises, Inc. v. Palram Americas, Inc.* (2015) 235 Cal.App.4th 257, 280-82 [underlining added].)

Plaintiff

may obtain the deposition of James Merriman pursuant to Civ. Proc. Code § 2026.010 pertaining to the taking of an oral deposition in another state in the United States.

[1]

A witness, including a witness specified in subdivision (b) of Section 1987[1], is not obliged to attend as a witness before any court, judge, justice or any other officer, unless the witness is a resident within the state at the time of service.

(Civ. Proc. Code § 1989.)